

[DRAFT]

**American Feudalism:
Black Subjecthood in Antebellum America¹**

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*How strange a world, how strange an existence, that one's equal must argue for one's equality, that one's equal must hold a station that allows airing of that argument, that one cannot make. The argument for oneself, that premises of said argument must be vetted by those equals who do not agree.*²

I. Introduction

“The new Government was not a mere change in a dynasty, or in a form of government, leaving the sovereignty the same, and clothes with all the rights, bound by all the obligations of the proceeding one,” proclaims Chief Justice Taney in *Dred Scott v. Sandford*, reflecting on the new American government.³ He continues, stating that the U.S. “came into existence under the new [g]overnment, it was a new political body, a new nation, then for the first time taking its place in the family of nations.”⁴ Like many at the time, Chief Justice Taney viewed the American government as new and distinct from governance under English feudalism and the British Empire. However, governance at that time suggests otherwise, indicating that this new government did not sever ties to its English predecessors, particularly in feudalism. The core feudal structures, in fact, persisted well into the new democratic republic.

This paper contends that feudal structures, such as fragmented sovereignty, coercive interdependence, and subjecthood, animated American governance for enslaved Black people and their descendants in Antebellum America. This argument suggests that slavery did not merely subordinate Black people within the U.S. political structure but placed them outside it altogether. Thus, Black people operated within a separate regime redolent of English feudal systems. This

² Percival Everett, *James* 52 (Doubleday 2024).

³ *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393, 441 (1857).

⁴ *Id.*

separate governance operated alongside, not in contradiction to, the American democratic institutions available to White people in the Antebellum South.

To advance this assertion, this paper proceeds as follows. First, the theoretical foundations of democratic governance and citizenship are discussed. Next, the development and contours of the American citizenship regime before the Civil War are presented. Then, the status of Black citizenship in the Supreme Court's decision in *Dred Scott v. Sandford* (1857) is scrutinized for context. The final section offers a new framework, referred to as American feudalism, that reconceptualizes American citizenship in the antebellum period as dominated by two concurrent, parallel forms of governance, one for White people and the other for Black people, within the same American republic, thereby perpetuating both democratic principles and English subjecthood-like oppression.

II. Theoretical Foundations

The tradition of American constitutionalism draws on theories that produce citizenship, sustain subjecthood, and mediate between the two. When combined, these theories structure a political order in which multiple forms of membership coexist in parallel.

A. English Political Beginnings

The American democratic experiment is as much an extension of the colonists' understanding of the English feudal system as it is a response to their experiences under the British Empire. Feudalism structured life in present-day England from approximately 1066 A.D. to the rise of the Tudor Dynasty in 1485.⁵ Most scholars characterize feudal systems by either their

⁵ See George C. Comninel, *English Feudalism and the Origins of Capitalism*, 27 J. PEASANT STUD. 1 (2000); Elizabeth A. R. Brown, *The Tyranny of a Construct: Feudalism and Historians of Medieval Europe*, 79 Am. Hist. Rev. 1063 (1974); Paul M. Sweezy & Maurice Dobb, *The Transition from Feudalism to Capitalism*, 14 SCI. & SOC. 134 (1950); Marc Bloch, *Feudal Society II: Social Classes and Political Organization* (L.A. Manyon trans., 2d ed. 1962); Carl Stephenson, *The Origin and Significance of Feudalism*, 46 AM. HIST. REV. 788 (1941).

foundational economic, legal, or socio-political mechanisms. Scholars such as Maurice Dobb and Paul M. Sweezy interpret feudalism through an economic lens.⁶ The former contends that feudal systems were “virtually identical with what we usually mean by serfdom,” in which an overlord extracted surplus labor or dues from individuals who worked the land through force, violence, or compulsion.⁷ The latter, in the same vein, posits feudalism as an economic system of “production for use” that centered the manorial estate as the catalyst for the local community rather than the expansive market economy.⁸ Researchers Vincent Delabastita and Sebastiaan Maes, relying on more modern qualitative methods, refine these economic definitions of feudalism, referring to the system as “an economy-wide network of institutionalized social interactions among landowners,” that, in return, facilitated the cooperation, information sharing, and even agricultural management amongst members of the community.⁹ As an economic system, feudalism is characterized by the compulsory extraction of resources within localized and tightly controlled economies.

When conceptualized as “social institutions which create and regulate a quite specific form of relations between men,” feudalism is a legal and socio-political construct.¹⁰ To this point, historian Carl Stephenson positions feudalism as a political bond forged between the vassal and the fief through the exercise of military service.¹¹ French historian Marc Bloch, expanding this understanding, describes the system as “the rigorous economic subjection of a host of humble folk

⁶ Paul M. Sweezy & Maurice Dobb, *The Transition from Feudalism to Capitalism*, 14 SCI. & SOC. 134 (1950)

⁷ *Id.* at 158.

⁸ *Id.* at 135.

⁹ Vincent Delabastita & Sebastiaan Maes, *The Feudal Origins of Manorial Prosperity: Social Interactions in Eleventh-Century England*, 83 J. ECON. HIST. 464, 465 (2023).

¹⁰ Robert Brenner, Feudalism, in *The New Palgrave: A Dictionary of Economics* 322 (John Eatwell et al. eds., Macmillan Press 1987).

¹¹ Carl Stephenson, *The Origin and Significance of Feudalism*, 46 AM. HIST. REV. 788 (1941) at 794.

to a few powerful men . . . partly for the benefit of an oligarchy of priests and monks whose task it was to propitiate Heaven, but chiefly for the benefit of an oligarchy of warriors.”¹² He further centers feudal relationships, describing such societies as “ties of interdependence” that encompass the entire society, so much so that everyone participates in this reciprocal hierarchical, albeit uneven, network.¹³ Furthermore, Mark Brenner views feudalism as a specific system of social property relations, implemented through class struggles between lords and peasants, that ultimately undermines economic productivity and limits sustained economic growth.¹⁴

Beyond the feudal relationships within a socio-political framework, the concept of power similarly shapes the system. Through this lens, feudalism is described as a decentralized, privately held system of political domination in which power is fragmented and transferred across local actors, with military service governed by a political contract.¹⁵ Joseph Strayer narrowly defines the term as a form of governance in which political acts are animated and mitigated.¹⁶ F. L. Ganshof emphasizes the role of the fief, arguing that feudalism is a socio-political system built on intense personal dependence, rigid property-based hierarchies, and fragmented political authority.¹⁷ Moreover, he postulates that such feudal power emerges in the aftermath of a failed

¹² Marc Bloch, *Feudal Society* 341 (1961), *quoted in* Robert van Krieken, *Refeudalization and Law: From the Rule of Law to Feudal Forms of Power*, 19 ANN. REV. L. & SOC. SCI. 337, 342 (2023).

¹³ Marc Bloch, *Feudal Society II: Social Classes and Political Organization* (L.A. Manyon trans., 2d ed. 1962) at 166.

¹⁴ Robert Brenner, *The Agrarian Roots of European Capitalism*, in *The Brenner Debate: Agrarian Class Structure and Economic Development in Pre-Industrial Europe* 16, 17 (T.H. Aston & C.H.E. Philpin eds., Cambridge Univ. Press 1985).

¹⁵ Robert Brenner, *Feudalism*, in *The New Palgrave: A Dictionary of Economics* 322 (John Eatwell et al. eds., Macmillan Press 1987).

¹⁶ Joseph R. Strayer, *The Development of Feudal Institutions*, in *Medieval Statecraft and the Perspectives of History: Essays by Joseph R. Strayer* 63 (Princeton Univ. Press 1971).

¹⁷ F.L. Ganshof, *Feudalism* (Philip Grierson trans., Harper & Row 1964).

state.¹⁸ Likewise, Thomas N. Bisson emphasizes fragmented lordship and privatized coercive power that dominated political authority and were dispersed, much like an asset, in the form of property.¹⁹ Nonetheless, Strayer, Ganshof, and Bisson offer distinct yet complementary frameworks that together provide a comprehensive account of feudal systems.

The economic, legal, and socio-political dimensions of feudal systems offer a more nuanced and complex understanding of the role of feudal structures in the lives of Medieval Europeans. Consequently, feudalism is best understood not as a singular institutional form but as a system operating across these dimensions. As an economic system, feudalism organizes modes of production around class relations, in which direct producers retain access to the means of subsistence but are subjected to extra-economic coercion imposed by landowning elites to extract rent and labor.²⁰ As a legal concept, it structures the relationship between vassals and lords through the exchange of service for land.²¹ This arrangement, in turn, demarcates status, obligation, and hierarchy.²² As a socio-political system, feudalism is marked by the fragmentation of authority, whereby power is privately held and can be inherited, transferred, or alienated, culminating in the dispersal of authority among actors to advance their own interests, with powers typically associated with the state.²³ Taken together, these dimensions reveal feudalism as a system of

¹⁸ F.L. Ganshof, *Feudalism* (Philip Grierson trans., Harper & Row 1964).

¹⁹ Thomas N. Bisson, *The Crisis of the Twelfth Century: Power, Lordship, and the Origins of European Government* (Princeton Univ. Press 2009).

²⁰ Robert van Krieken, *Refeudalization and Law: From the Rule of Law to Ties of Allegiance*, 19 ANN. REV. L. & SOC. SCI. 337, 342 (2023).

²¹ *Id.*

²² *Id.*

²³ *Id.*

privatized, interdependent hierarchical obligation and coercive extraction. Therefore, it is a framework that provides a foundation for understanding analogous structures of domination.

Still, the foregoing framework raises a central question: where is authority derived in feudal relationships? The answer lies in the concept of sovereignty. Sovereignty is the “capacity to determine conduct within the territory of a polity without external constraint.”²⁴ This capacity is endowed with authority, or “the right to command and, correlatively, the right to be obeyed.”²⁵ Authority derives from law, tradition, consent, or divine command, and is undeniably legitimate.²⁶ For this reason, a sovereign, the person or entity that possesses sovereignty, holds a power that, when exercised, is understood as right and legitimate, affording the sovereign the authority to enforce and maintain sovereignty over geographically defined land.²⁷ The Medieval English denotation reflected the “supreme authority within a territory.”²⁸

Sovereignty depends on the existence of subjects. Subjecthood, a political and legal status, denotes a vertical relationship in which an individual or subject owes loyalty and subordination to a sovereign in exchange for protection.²⁹ Sixteenth-century French jurist and political philosopher Jean Bodin theorizes that the fundamental relationship in governance is between the sovereign and his authority over his subjects.³⁰ Moreover, he postulates that obligation, protection from the

²⁴ Caroline Humphrey, *Sovereignty*, in *A Companion to the Anthropology of Politics* 418 (David Nugent & Joan Vincent eds., 2004).

²⁵ Daniel Philpott, *Sovereignty: An Introduction and Brief History*, 48 J. INT’L AFFS. 353, 355 (1995).

²⁶ *Id.*

²⁷ *Id.*

²⁸ Daniel Philpott, *Sovereignty*, Stan. Encyclopedia Phil. (Edward N. Zalta & Uri Nodelman eds.), <https://plato.stanford.edu/entries/sovereignty/> (last visited May 6, 2026).

²⁹ See, e.g., Jean Bodin, *On Sovereignty* 1–2 (Julian H. Franklin ed. & trans., Cambridge Univ. Press 1992) (1576); Thomas Hobbes, *Leviathan* (Richard Tuck ed., Cambridge Univ. Press 1996) (1651).

³⁰ Jean Bodin, *On Sovereignty* 12–13 (Julian H. Franklin ed. & trans., Cambridge Univ. Press 1992) (1576).

sovereign, and exclusion from the lawmaking process define this relationship.³¹ Subjecthood is not a lesser form of citizenship.³² Quite the opposite. It is a different basis for a political relationship.³³ Early modern political theory reveals that subjecthood and citizenship are both points along a single spectrum and distinct political relationships.³⁴ Bodin's account of sovereignty, therefore, foregrounds a model of political order grounded in hierarchical subjection.³⁵

Sovereign-like functions can also appear outside of the state.³⁶ Scholar Caroline Humphrey introduces this idea as *micro-sovereignty*.³⁷ She contends that sovereign-like authority, which is traditionally reserved for states and nations, can be observed in localized spheres of politics, resembling state power.³⁸ Therefore, sovereign-like authority need not be monopolized by the state, but may instead operate within localized political spheres.

B. American Theoretical Foundations

During English feudalism, subjects owed loyalty to the monarch, and their rights were mediated by their status in the feudal hierarchy. Under the British Empire, colonists in the Americas were subjects of the British Crown but lacked equal status with those in the mother

³¹ *Id.* at 13–14.

³² *Id.* at 10.

³³ *Id.*

³⁴ *Id.*

³⁵ Jean Bodin, *On Sovereignty* (Julian H. Franklin ed. & trans., Cambridge Univ. Press 1992) (1576).; Jean-Jacques Rousseau, *On the Social Contract* (Donald A. Cress trans., Hackett Publ'g Co. 1987) (1762).

³⁶ Humphrey, *supra* note 25, at 418.

³⁷ *Id.*

³⁸ *Id.*

country. This realization, expressed in the slogan “no taxation without representation,” defined and eventually catalyzed the American Revolution.

The framers of the Constitution conceived of a democratic republic as a form of government. Democracy has been described as “a Form of Government, where the supreme or legislative Power is lodged in the Common People, and have their Turns of Commanding as well as Obeying.”³⁹ Effective participation, voting equality, enlightened understanding, control of the nation’s agenda, and inclusion of adults characterize democratic governance.⁴⁰ James Madison writes that a republic is a form of government in which representation is the scheme.⁴¹ In a democratic government, according to James Monroe, equality is universal among its citizens.⁴² However, a “republic, on the other hand, is not ‘founded on the equality of all citizens’...simply because people are not equal,” opined John Adams, acknowledging the moral and political equalities of rights and duties while arguing that natural and social inequalities still shape political society.⁴³ The French political philosopher Baron de Montesquieu writes that “[r]epublican government is that in which the body, *or only a part* of people, is possessed of the supreme power.”⁴⁴ As a result, the “republic is the main category of government in which authority rests initially with the populace, but is composed of two subcategories, the democratic if all the people

³⁹ Robert W. Shoemaker, “*Democracy*” and “*Republic*” as Understood in Late Eighteenth-Century America, 41 AM. SPEECH 83, 86 (1966).

⁴⁰ Robert A. Dahl, *On Democracy* 37–38 (Yale Univ. Press 1998).

⁴¹ The Federalist No. 10, at 61 (James Madison) (Clinton Rossiter ed., 1961).

⁴² Shoemaker, *supra* note 39, at 85.

⁴³ *Id.*

⁴⁴ *Id.*

rule or the aristocratic if only a select number of them do.”⁴⁵ While democracy locates sovereignty in the people, republicanism structures its exercise through representation and institutional constraints. Together, a democratic republic reflects sovereignty vested in the people but exercised by elected representatives, with an emphasis on the rule of law, civic virtue, and protection from arbitrary power. Simply put, it seeks to secure freedom by preventing arbitrary or uncontrolled power over individuals.

Whereas the concept of sovereignty that informs each of the framers’ understanding of democracy derives directly from English political thought, American political thought, specifically liberalism⁴⁶, reflects the writings of Thomas Hobbes and John Locke. In *Leviathan*, Hobbes asserts that war and insecurity constitute the state of nature; to avoid it, individuals must relinquish their power to the sovereign for peace and protection.⁴⁷ Thus, subjecthood reflects an individual’s absolute obedience to the sovereign in exchange for protection. Because individuals must be governed, this is the case. Contemporary with Hobbes, John Locke, also a father of liberalism, similarly develops the theory of natural law.⁴⁸ In *Two Treatises*, Locke argues that individuals are free and equal in the state of nature, but that they establish forms of governance to protect life, liberty, and property.⁴⁹ However, Locke claims that any political authority exercised under this

⁴⁵ *Id.*

⁴⁶ See Peter de Marneffe, Liberalism, in *The Myth of Classical Liberalism* 33, 35 (2026) (Stating that “Liberalism, in other words, is the political doctrine that political institutions should be reformed so as to reduce the political influence of the landed aristocracy and to increase the political influence of others (particularly the prosperous, educated middle class, though Stephen does not say so here).” See also Shourideh C. Molavi, *Liberal Citizenship: Ambiguities and Inconsistencies*, in *Stateless Citizenship: The Palestinian-Arab Citizens of Israel* 1, 24 (Brill 2013).

⁴⁷ Thomas Hobbes, *Leviathan* ch. XIII, ¶¶ 8–9, ch. XVII, ¶¶ 1–13 (Edwin Curley ed., Hackett Publ’g Co. 1994) (1651).

⁴⁸ John Locke, *Two Treatises of Government* bk. II, ch. II, §§ 4–15 (Peter Laslett ed., Cambridge Univ. Press 1988) (1689).

⁴⁹ *Id.* bk. II, ch. II, §§ 4–15, ch. VII, §§ 87–94, ch. IX, §§ 123–31.

form of governance is limited by the people's consent.⁵⁰ Even so, Locke does not view citizenship as universal, contemplating a theory of freedom that structurally permits one individual to dominate another. This framework of consent and property is embedded in American governance.

From this, a notion of citizenship emerges. In his seminal text, *The Spirit of the Laws*, Montesquieu presents citizenship not as a singular legal status, as in modern constitutional theory, but as one deeply rooted in existing political structures.⁵¹ Republics demand active participation from their citizenry; monarchies define status by an individual's position within the honor-driven hierarchy; and despots lack meaningful citizenship entirely, instead ruled by fear of the sovereign, according to Montesquieu.⁵² To that end, he argues that citizenship requires political liberty. Political liberty exists where citizens are protected from arbitrary power, but do not necessarily have total freedom.⁵³ Citizenship, as Montesquieu explains, requires moral discipline in addition to legal recognition from the political system.⁵⁴ Local institutions, political elites, and other subordinate powers mediate between the state and the individual, preventing domination through a "web of relations."⁵⁵ Montesquieu's account of political membership as mediated by regime type, hierarchical and unequal institutional positioning persisted in American political systems,

⁵⁰ *Id.* bk. II, ch. VIII, §§ 95–99, 134–42.

⁵¹ Charles de Secondat, Baron de Montesquieu, *The Spirit of the Laws* bk. II, chs. 1–3, bk. III, chs. 1–3 (Anne M. Cohler et al. eds. & trans., Cambridge Univ. Press 1989) (1748).

⁵² *Id.* bk. III, chs. 3, 7, 9; see also Montesquieu, *Spirit of Laws*, bk. III, chs. 8–9, in *The Founders' Constitution* vol. 1, ch. 18, doc. 3 (Philip B. Kurland & Ralph Lerner eds., 1987) (describing virtue as necessary in republics, honor in monarchies, and fear in despotic government).

⁵³ Montesquieu, *supra* note 1, bk. XI, chs. 3, 6; see also Montesquieu, *Spirit of Laws*, bk. XI, chs. 3, 6, in *The Founders' Constitution* vol. 1, ch. 17, doc. 9 (Philip B. Kurland & Ralph Lerner eds., 1987).

⁵⁴ Montesquieu, *supra* note 1, bk. IV, ch. 5, bk. V, chs. 2–7.

⁵⁵ *Id.* bk. II, ch. 4; see also Sharon Krause, *Liberalism with Honor* 100–33 (2002).

even as American citizenship developed through its own racialized, gendered, and property-based exclusions.⁵⁶

For that reason, some scholars have challenged the degree to which American legal tradition truly or exclusively aligns with the modern understanding of liberalism. Rogers M. Smith characterizes American political culture as “centered on relationships among a minority of Americans (white men, largely of northern European ancestry) analyzed via reference to categories derived from the hierarchy of political and economic statuses men have held in Europe.”⁵⁷ Deemed “ascriptive systems,” Smith explains that American intellectuals and political elites calcified these beliefs in ways that “offered credible intellectual and psychological reasons for many Americans to believe that their social roles and personal characteristics express an identity that has inherent and transcendent worth, thanks to nature, history, and God.”⁵⁸

This same ascriptive system, as believed by its adherents according to Smith, demands American political and economic structures reflect these “natural and cultural inequalities, even at the cost of violating doctrines of universal rights.”⁵⁹ Because America’s approach, according to Smith, is an amalgamation of multiple political traditions in which no single tradition is superior, America’s unique and everlasting affinity for ascriptive systems is restrained.⁶⁰ Restraint in these ascriptive systems does not equate to inoperative systems. Quite the contrary, these ascriptive

⁵⁶ See *The Federalist No. 47* (James Madison) (describing Montesquieu as “the celebrated Montesquieu” and discussing his influence on the separation of powers); Rogers M. Smith, *Civic Ideals: Conflicting Visions of Citizenship in U.S. History* 1–39 (1997); Judith N. Shklar, *American Citizenship: The Quest for Inclusion* 1–12, 25–62 (1991).

⁵⁷ Rogers M. Smith, *Beyond Tocqueville, Myrdal, and Hartz: The Multiple Traditions in America*, 87 AM. POL. SCI. REV. 549, 549 (1993).

⁵⁸ *Id.* at 550.

⁵⁹ *Id.*

⁶⁰ *Id.*

systems have the same force, influence, and real-life ramifications as any of the other political traditions found within the nation. Early American political thought did not abandon the notion of subjecthood but instead reconstituted alongside a nominally universal framework of citizenship.

C. Concept of Citizenship

American constitutionalism is not a single tradition but a layered synthesis of competing theories of political membership, combining liberal citizenship, inherited subjecthood, and structured domination within a single constitutional order. As such, the American concept of citizenship reflects English common law. Lord Edward Coke in the 1608 *Calvin's Case* opined that an individual's subjecthood was established at birth by his or her mere presence in the king's realm at the time.⁶¹ *Jus soli* subjecthood, under Lord Coke's pronouncement, was "compulsory and was so unalterably and for life."⁶² A century later, William Blackstone echoes this sentiment, writing that "allegiance is such as is due from all men born within the king's dominions immediately upon their birth."⁶³ Moreover, Blackstone treats subjecthood as the baseline legal status from which American citizenship doctrines developed, even if at the time, the concept was not fully severed from the inherited framework.⁶⁴ As a consequence, English subjecthood evolves into American citizenship as it is today.⁶⁵ The "[r]ules of citizenship derived from Calvin's Case [form] the basis of the American common-law rule of birthright citizenship, a rule that was later embodied in the Fourteenth Amendment of the U.S. Constitution."⁶⁶

⁶¹ *Calvin's Case* (1608) 77 Eng. Rep. 377, 399; 7 Co. Rep. 1a, 18a.

⁶² William Ty Mayton, Birthright Citizenship and the Civic Minimum, 22, 22 GEO. IMMIGR. L.J. 221 (2008).

⁶³ Michael D. Ramsey, Originalism and Birthright Citizenship, 109 GEO. L.J. 405,413 (2020).

⁶⁴ 1 William Blackstone, *Commentaries on the Laws of England* *354 (Univ. of Chi. Press 1979) (1765).

⁶⁵ *Id.*

⁶⁶ Polly J. Price, Natural Law and Birthright Citizenship in Calvin's Case (1608), 9 YALE J.L. & HUMAN 73, 74 (1997).

Jean-Jacques Rousseau further articulates American conceptions of citizenship. In his work, *The Social Contract*, individuals argues that individuals form a collective political body that expresses the general will of the people.⁶⁷ This results in citizens being as instrumental in the production of laws as the sovereign and the subject.⁶⁸ The unity of the sovereign with the subject ultimately creates the modern-day citizen in a democratic republic.⁶⁹ Accordingly, contrary to the notions in early European theory, freedom does not require dependence on another individual's will or private domination, but obedience to a law that an individual prescribes for themselves.⁷⁰

Framers of the U.S. Constitution, James Madison, Alexander Hamilton, and Thomas Jefferson grappled with the idea of citizenship for their new nation in the infamous Federalist Papers. Madison in *Federalist no. 10* (1787)⁷¹ and *Federalist No. 51* (1788)⁷², elaborates on Montesquieu's writings, arguing that citizenship is tied to national authority and stability.⁷³ Hamilton in *Federalist No. 70* (1788)⁷⁴ and *Federalist No. 78* (1788)⁷⁵ finds defining citizenship as necessary, for it provides national authority to the sovereign government and the stability necessary for the state to flourish.⁷⁶ Jefferson, who would go on to be the third president of the U.S. and a known slaveowner, articulates a republican conception of citizenship rooted in legal

⁶⁷ Jean-Jacques Rousseau, *On the Social Contract* 27 (Donald A. Cress trans., Hackett Publ'g Co. 1987) (1762).

⁶⁸ *Id.*

⁶⁹ *Id.*

⁷⁰ *Id.*

⁷¹ *The Federalist No. 10* (James Madison), in *The Federalist Papers* 57 (Jacob E. Cooke ed., 1961).

⁷² *The Federalist No. 51* (James Madison), in *The Federalist Papers* 349 (Jacob E. Cooke ed., 1961).

⁷³ *The Federalist No. 10*, *supra* note 74, at 57; *The Federalist No. 51*, *supra* note 75, at 349.

⁷⁴ *The Federalist No. 70* (Alexander Hamilton), in *The Federalist Papers* 471 (Jacob E. Cooke ed., 1961).

⁷⁵ *The Federalist No. 78* (Alexander Hamilton), in *The Federalist Papers* 521 (Jacob E. Cooke ed., 1961).

⁷⁶ *The Federalist No. 70*, *supra* note 77, at 471; *The Federalist No. 78*, *supra* note 78, at 521.

independence, property, and civic participation, all categories that privilege free, independent, property-owning individuals such as himself.⁷⁷ Consequently, the U.S. Constitution establishes a purported “purely democratical” government because its authority derives from the people.⁷⁸

Yet early theories of citizenship failed to fully account for the relationship between legal citizenship and personhood. Although all theories presuppose inclusion, participation, and equal status within the political structure, those conditions are not uniformly actualized. Drawing on German philosopher Georg Hegel’s account of recognition, citizenship can be understood as dependent upon the mutual acknowledgment of personhood and political status within the polity.⁷⁹ However, under slavery, that recognition was systematically denied. To this point, citizenship in the U.S. for Black people has been defined by the tension between the formal promises of democratic equality and the lived realities of subordination.⁸⁰

This paper departs from conventional accounts of citizenship that center rights, inclusion, or legal status by instead conceptualizing citizenship as embedded within a broader structure of sovereignty and domination. Drawing on feudalism, subjecthood, and theories of fragmented authority, it argues that American citizenship did not replace hierarchical, feudal-like political relations but rather reconstituted them within two frameworks: a democratic republic and a racialized subjecthood.

III. Citizenship within the American Context

⁷⁷ Letter from Thomas Jefferson to Samuel Kercheval (July 12, 1816), in *The Founders’ Constitution* ch. 13, doc. 5; Letter from Thomas Jefferson to Isaac McPherson (Aug. 13, 1813), in *The Founders’ Constitution* vol. 1, ch. 16, doc. 25.

⁷⁸ Shoemaker, *supra* note 39, at 86.

⁷⁹ G.W.F. Hegel, *Phenomenology of Spirit* ¶¶ 178–96 (A.V. Miller trans., Oxford Univ. Press 1977) (1807).

⁸⁰ W.E.B. Du Bois described this phenomenon as the existence of “warring ideals” within Black American life. See W.E.B. Du Bois, *The Souls of Black Folk* 8 (Oxford Univ. Press 2007) (1903).

According to Merriam-Webster, citizenship is “the status of being a citizen,” a citizen is “a native or naturalized person who owes allegiance to a government and is entitled to protection from it,” or “a member of a state.”⁸¹ Legally, the Fourteenth Amendment defines U.S. citizenship as belonging to “[a]ll persons born or naturalized in the United States, and subject to the jurisdiction thereof.”⁸² Ergo, case law has long settled any ambiguity here: individuals born within the U.S. jurisdiction, whether physical or otherwise, are citizens.⁸³ Reflecting on the more substantive rights of citizenship, Melissa V. Harris-Perry expands on this definition, writing in her book, *Sister Citizen: Shame, Stereotypes, and Black Women in America*, that “[c]itizenship is more than an individual exchange of freedoms for rights; it is also membership in a body politic, a nation, and a community.”⁸⁴ Together, citizenship is both a legal status and an inherently socio-political indicator of membership.

U.S. citizenship did not emerge as a fixed or universally defined legal status. Rather, it developed through a fragmented and often contradictory process of constitutional design, state practice, judicial interpretation, and political contestation. Because the Constitution failed to define national citizenship, states construed citizenship in ways that reflected status, allegiance, race, and property. During the antebellum period, these differences created a deeply fragmented citizenship regime mired in varying state political structures and conflicting political ideologies. This section argues that, within the broader context of nation-state building, antebellum legal thought was

⁸¹ Citizenship, Merriam-Webster.com Dictionary, <https://www.merriam-webster.com/dictionary/citizenship>; Citizen, Merriam-Webster.com Dictionary, <https://www.merriam-webster.com/dictionary/citizen> (last visited Apr. 1, 2026).

⁸² U.S. Const. amend. XIV, § 1, cl. 1.

⁸³ See *United States v. Wong Kim Ark*, 169 U.S. 649 (1898) (holding that a person born in the U.S. to foreign citizens parents were U.S. citizens at birth under the Fourteenth Amendment).

⁸⁴ Melissa V. Harris-Perry, *Sister Citizen: Shame, Stereotypes, and Black Women in America* 36–37 (Yale University Press 2011).

neither universally distributed nor universally applied but rather operated through parallel frameworks of governance that differentiated among citizens, subjects, persons, and property.

A. Citizenship in Nation-State Building

The story of American citizenship is a story of nation-state building. The word “nation-state” here refers to

*some convergence of an institutionalized polity and collective allegiance to it, with ‘nationalism’ defined here as such bounded solidarity and allegiance to a state. The nation is that group viewed as the legitimate owner of the state; the collective sentiment of such ownership (that is, nationalism) is what gives the state legitimacy.*⁸⁵

The fragility of forming a new nation-state lies in the need to construct a shared identity among competing factions built on trust within an untested political and legal structure. History, race, language, culture, and even religious beliefs within a territorially defined space typically form the basis of a nation-state’s shared identity.⁸⁶ But when a shared identity is not as easily identified, defining who belongs within the nation-state overtly becomes a political act, in and of itself.

This is particularly apparent in developing democratic republics in which the people, and not the monarch, hold sovereignty and elect representatives to engage in the political structure on their behalf. The principles of democracy form the foundation of the shared identity of the people. Citizenship, at first, rests on an individual’s belief in a form of governance. Then the concept of citizenship operates as both a constructed status and an ideological mechanism. In turn, officials and elites construct a shared identity often built on “selective evocations of history to project an

⁸⁵ Anthony W. Marx, The Nation-State and Its Exclusions, 117 POL. SCI. Q. 103, 104 (2002).

⁸⁶ William Alonso, Citizenship, Nationality and Other Identities, 48 J. INT’L AFF. 585, 586-587 (1995).

image of prior legitimacy....”⁸⁷ Once it is reified as natural, it legitimizes the political and legal structures it was designed to produce.

Immediately after the American Revolution, the framers of the U.S. Constitution were tasked with transforming imperial and subnational political communities, whose identities and allegiances were aligned with British subjecthood or regional affiliations rather than with national identity, into citizens of a new democratic nation-state. The Treaty of Paris of 1783 granted the former British colonies sovereignty and severed ties with the Crown under King George III.⁸⁸ Loyalists were allowed to either return to England and maintain English subjecthood or to renounce their allegiance to the Crown and to participate in the new democratic nation-state.⁸⁹ Sovereignty no longer derived from the feudal relationship between the king and his subjects by virtue of birth within his realm, but instead was vested collectively in the people and exercised individually through electoral participation.⁹⁰ The Supreme Court, in one of its first actions as the highest court in the land, *Chisholm v. Georgia* (1793), reiterated the relationship between the people and sovereignty.⁹¹ In addition to establishing that a citizen of one state could sue another state, the Supreme Court declared that sovereignty rested in the individual, in an equal type of “joint tenants in sovereignty.”⁹² The new political relationship replaced subjecthood with citizenship, and consequently, political exclusion with access.

⁸⁷ *Id.*

⁸⁸ Definitive Treaty of Peace, U.S.–Gr. Brit., Sept. 3, 1783, 8 Stat. 80.

⁸⁹ See *Inglis v. Trustees of Sailor’s Snug Harbor*, 28 U.S. 99, 164 (1830) (A person’s character is determined by their status at birth, but may be altered by changes in sovereignty and the individual’s election once they reach the age of majority.); *Shanks v. Dupont*, 28 U.S. (3 Pet.) 242 (1830) (holding that citizenship depends on allegiance, which is not altered without voluntary action or legal recognition).

⁹⁰ *Id.*

⁹¹ *Chisholm v. Georgia*, 2 U.S. (2 Dall.) 419 (1793).

⁹² *Id.*

The connection between the choice of allegiance and the body's physical existence within the territorial bounds of the state demonstrates how nascent the concept of citizenship was at this point. These seemingly inextricably bound concepts constrained the relationship between the nation-state and the individual and shaped the political relationships among individuals. Yet because defining and reconstituting citizenship is an inherently political process, it is subject to negotiation and compromise of these very concepts. In one of the first acts of nation-state building, the delegates to the 1787 Constitutional Convention debated whether slaves in the southern states would be considered citizens in the new democratic republic.⁹³ Southern delegates sought to increase their representation in the House of Representatives and to establish direct taxation by including slaves, despite slaves not counting in their state house elections and often being referred to as "property."⁹⁴ In the interest of forming a nation, the delegates agreed to count slaves as three-fifths of white citizens; thereby, convoluting the existence of Black personhood and eventually solidifying citizenship as a political tool.

Whether intentional or not, the U.S. Constitution failed to define citizenship. In fact, the term appears approximately 11 times in the Constitution but is never defined. It can be assumed, as Justice Taney stated in the Dred Scott decision, that the Founding Fathers regarded citizenship as an unambiguous concept.⁹⁵ The Privileges and Immunities Clause offers some insight by prioritizing state citizenship, making it reciprocal and equal to national citizenship.⁹⁶ But the Naturalization Clause delegates to Congress the power to establish naturalization, the ultimate

⁹³ M. Tanguay, *The Three-Fifths Clause: A Necessary American Compromise or Evidence of America's Original Sin?* 21–22 (2017), <http://hdl.handle.net/10822/1043901>.

⁹⁴ *Id.*

⁹⁵ U.S. Const.

⁹⁶ U.S. Const. art. IV, § 2, cl. 1.

articulation of de jure and substantive citizenship—an overtly political institution.⁹⁷ The Constitution at the time of ratification did, however, make clear one thing in the Fugitive Slave Clause: “persons held to Service of Labor” are implicitly not citizens and cannot be naturalized as such.⁹⁸ Even without defining citizenship, the Constitution consolidated power, loosely established a hierarchy of peoplehood, and legitimized exclusionary measures that would be used to dictate citizenship within the political structure.

Congress struggled to align the theoretical foundations of its new nation with the practical application for individuals seeking citizenship. “Congress, pursuant to its naturalization power, enacted the first national naturalization statute in 1790, and a federal statutory law of naturalization[, which] remained part of U.S. law, with various repeals, replacements, and amendments, through the time of the Fourteenth Amendment.”⁹⁹ Within eight years, three Naturalization Acts were enacted and repealed. The Naturalization Act of 1790 extended citizenship to free white persons who could prove they were “a person of good character” and had been U.S. residents for at least two years.¹⁰⁰ The 1795 Naturalization Act repealed the prior act, maintaining “free white persons” but implementing a two-step process in which an alien had to declare their intent to seek citizenship, renounce their allegiance to their home country, and prove their “good moral character” and attachment to the principles of the Constitution.¹⁰¹ Three years later, the Naturalization Act of 1795 was repealed, and naturalization procedures tightened, most

⁹⁷ U.S. Const. art. I, § 8, cl. 4.

⁹⁸ U.S. Const. art. IV, § 2, cl. 3.

⁹⁹ Michael D. Ramsey, Originalism and Birthright Citizenship, 109 GEO. L.J. 405, 411 (2020).

¹⁰⁰ *Act of Mar. 26, 1790*, ch. 3, 1 Stat. 103.

¹⁰¹ *Act of Jan. 29, 1795*, ch. 20, 1 Stat. 414.

notably by extending residency requirements to 14 years, as opposed to five.¹⁰² The Naturalization Acts implicitly established that American citizenship was reserved for free white people.

B. Antebellum Ideas of Citizenship (1812-1861)

In the years leading up to the American Civil War, individual states sought to push the boundaries of citizenship within both the state and federal systems; in doing so, the states collaterally created mechanisms by which citizenship could be deployed to exercise political power over others. Federal systems, or forms of governance in which power is divided between a central and a regional government, diffuse power amongst various political elites that otherwise would be concentrated in one or a few political elites. In Antebellum America, political power was formally extended to white men. An oligarchic system, composed largely of the elite planter class, constituted the political power structure in the American South, whereas commercial and financial elites held power in the northern states. Ergo, citizenship was weaponized by the political elites at the helm of the various and divergent state governments.

Citizenship existed as an undefined but operative concept dually entrenched in the process of nation-state building on the state and national levels. With little insight from the text of the Constitution, states, specifically political elites leading local government, constructed meaning from its text that aligned with the existing local political structure and bolstered their power within their respective state legislatures. For example, many in the new nation construed citizenship as both relational and inherent, an indicator of not just political but also social membership.¹⁰³ Political elites in southern states deployed citizenship as a juridical tool to formalize and reproduce

¹⁰² *Act of June 18, 1798*, ch. 54, 1 Stat. 566.

¹⁰³ See generally D. Smith, *Citizenship and the Fourteenth Amendment*, 34 SAN DIEGO L. REV. 681, 683 (1997); *Amy v. Smith*, 11 Ky. (1 Litt.) 326, 694 (1822).

the endemic racialized order for which the Constitution had alluded. The jurisprudence surrounding citizenship in each state, thus, varied. Despite the states drawing from the same Constitutional text and relevant statutes, state jurisprudence on citizenship reflected local political structures and the power of the political elite, often contradicting one another. Simply put, citizenship was an open-textured construct, undefined in federal law but evolving in practice.

Between 1822 and 1837, federal and state actors grappled with the meaning and boundaries of citizenship. *The Venus*, 12 U.S. (8 Cranch) 253 (1814), gave the nation its first insight into the Supreme Court’s constitutional interpretation of citizenship.¹⁰⁴ There, the Supreme Court held that citizenship depended on an individual’s domicile and allegiance, which could be complex and shifting but need not be formalized.¹⁰⁵ *The Venus* articulated a concept of national character that later courts repurposed in constructing their fluid and indeterminate doctrine of citizenship. A New Jersey court in *Corfield v. Coryell* (1823), although addressing state citizenship within the context of the Constitution’s Privileges and Immunities Clause, distinguished between “citizens” of a state¹⁰⁶ and non-citizens (e.g., non-residents, foreigners, or citizens of other states) based on property rights and access to public resources.¹⁰⁷ Eventually, the federal and state governments engaged one another over the elusive concept of citizenship. More than a decade after *The Venus*,

¹⁰⁴ *The Venus*, 12 U.S. (8 Cranch) 253 (1814).

¹⁰⁵ *Id.*

¹⁰⁶ The Supreme Court in *City of New York v. Miln*, 36 U.S. (11 Pet.) 102 (1837), held that a state’s police powers allowed it to regulate entry of persons, giving the state court in *Corfield* jurisdictional control over all people within its borders.

¹⁰⁷ *Corfield v. Coryell*, 6 F. Cas. 546 (C.C.E.D. Pa. 1823) (No. 3,230) (The Court rejected the argument that the Privileges and Immunities Clause guaranteed nonresidents equal access to state-owned resources, instead characterizing such resources as common property reserved for a state’s own citizens. Nonresidents, as “strangers,” possessed no constitutional right to co-tenancy absent state consent. Grounded in principles of sovereignty and resource preservation, the Court analogized these resources to private property subject to state protection. The case, however, was ultimately resolved on procedural grounds because the plaintiff lacked actual or constructive possession of the vessel at the time of seizure).

the contours of American citizenship began to emerge in a series of Supreme Court decisions. In *American Insurance Co. v. Canter* (1828), the Supreme Court addressed the status and rights of individuals living in the newly acquired Florida territory.¹⁰⁸ The Court ultimately held that citizenship was inextricably bound to an individual's consent to be governed, in addition to his or her physical presence and territorial adherence.¹⁰⁹

Citizenship also operated as a layered legal status that did not guarantee equal rights. In *Shanks v. Dupont* (1830)¹¹⁰ and *Inglis v. Trustees of Sailor's Snug Harbor* (1830),¹¹¹ the Supreme Court affirmed that citizenship was guaranteed for women despite their political subjugation and for minors despite their lack of capacity. Hence, two tiers of citizenship existed within White citizenship: one for white men and the other for white women and, to a lesser extent, minors. For the former, citizenship reflected the framers' vision, endowing them with substantive citizenship.¹¹² The latter, as shown in *Shanks v. Dupont* (1830)¹¹³ and *Inglis v. Trustees of Sailor's Snug Harbor* (1830),¹¹⁴ constitutionalize women as well as children's legal citizenship. Political protection extended to White women, and their personhood was less under threat. But the same structure forbade White women from voting, owning land, and exercising a slew of other political

¹⁰⁸ *American Insurance Co. v. Canter*, 26 U.S. (1 Pet.) 511 (1828).

¹⁰⁹ *Id.*

¹¹⁰ *Shanks v. Dupont*, 28 U.S. (3 Pet.) 242 (1830) (holding that marriage to a foreign national does not convert a woman's citizenship because allegiance depends on intent and circumstances.).

¹¹¹ *Inglis v. Trustees of Sailor's Snug Harbor*, 28 U.S. 99 (1830) (holding that a person born in New York before July 4, 1776, who left the country with his royalist father and never returned, made an election to remain a British subject and was therefore an alien disabled from inheriting land in New York).

¹¹² *Shanks*, *supra* note 115.

¹¹³ *Id.*

¹¹⁴ *Inglis*, *supra* note 116.

rights. They lacked substantive political autonomy, often creating a dependency on White men through economic, political, and social mechanisms. However, subjugation is not exclusion. So, despite being subjugated to second-class citizenship, White women and children were citizens, nonetheless. Demonstrably, citizenship was a complex legal construct that was formally somewhat inclusive yet substantively unequal. The exclusion of Black people, in comparison, extended beyond diminished rights and instead reflected general exclusion from the democratic political community itself.

C. The Institution of Slavery: Citizens, People, or Property?

Black people, particularly enslaved people, occupied a fundamentally different political status. Early on, Black people existed within a liminal political and legal space. Africans were first recorded arriving in North America in 1619.¹¹⁵ It is believed that these first Africans, albeit captured by British pirates from a Portuguese slave ship, occupied an ambiguous status likely similar to that of an indentured servant.¹¹⁶ It was not until the late 17th Century that slavery became formally institutionalized in America.¹¹⁷ The Transatlantic Slave Trade was the coordinated and forced exchange of Africans across the Atlantic Ocean by European traders, African intermediaries, and American plantation economies in order to supply chattel slavery in the Americas.¹¹⁸ Approximately 400,000 Africans were brought to North America through this system

¹¹⁵ U.S. Census Bureau, *Population of the United States in 1860* [14] (1864), <https://www2.census.gov/library/publications/decennial/1860/population/1860a-02.pdf>.

¹¹⁶ Beth Austin, *1619: Virginia's First Africans* 7 (Hampton Hist. Museum Dec. 2019).

¹¹⁷ *Id.* at 20.

¹¹⁸ *Transatlantic Slave Trade*, *Encyclopaedia Britannica*, <https://www.britannica.com/topic/transatlantic-slave-trade> (last visited June 1, 2026).

of trade.¹¹⁹ Slavery in North America was a gradual process of statutory and doctrinal consolidation. However, by the start of the American Revolution, slavery was an institution deeply embedded in the colonial economy.

The institution posed major problems in early nation-state building. Slavery was not only the bedrock of the South's economy but also a central part of the political and social order. The North, more so, condemned slavery, deeming it abhorrent.¹²⁰ The North also resented the economic influence and political power that slavery gave to southern elites. Still, the North's rebuke of slavery did not mean that it saw Black people themselves as any more worthy of citizenship.¹²¹ As a result, the precarious institution of slavery ignited tensions.

The 1820 Missouri Compromise was an effort by Congress to quell tensions. The Compromise limited the expansion of slavery in newly admitted states while simultaneously pacifying slave states.¹²² Under the Missouri Compromise, Missouri, which was the first territory west of the Mississippi River to apply for U.S. statehood, would allow slavery, while Maine, another territory applying for statehood, would be admitted barring slavery.¹²³ The Compromise demarcated the U.S. and its territories into slave and non-slave states based on their location relative to the 36th parallel.¹²⁴ The Compromise failed to resolve the fundamental question of

¹¹⁹ Ronald Bailey, *The Discovery of the Americas and the Transatlantic Slave Trade*, Gilder Lehrman Institute of American History, https://www.gilderlehrman.org/history-resources/essays/discovery-americas-and-transatlantic-slave-trade?utm_source=chatgpt.com (last visited June 1, 2026).

¹²⁰ Keidrick Roy, *Racial Feudalism*, 21 *Mod. Intell. Hist.* 296 (2024).

¹²¹ Nicholas Guyatt, *Race, Citizenship, and Separation*, 47 *REV. AM. HIST.* 572, 575 (2019).

¹²² Missouri Compromise Ushers in New Era for the Senate, U.S. Senate, https://www.senate.gov/artandhistory/history/minute/Missouri_Compromise.htm (last visited May 6, 2026).

¹²³ *Id.*

¹²⁴ *Id.*

whether, within the Constitutional order, enslaved Black people were citizens, subjects, or even legal people.

The status of Black citizenship varied from state to state. For instance, the Kentucky Court of Appeals determined in *Amy v. Smith*, 11 Ky. (1 Litt.) 326 (1822), that emancipation did not confer citizenship on former slaves or freedmen or women.¹²⁵ Under this reasoning, citizenship was neither presumed by birth nor synonymous with freedom, and only U.S. citizens could exercise rights found within the Constitution.¹²⁶ Black people, as reasoned by the presiding Kentucky appellate court, were a “degraded race of people,” reflecting a sentiment shared by many political elites in the North as well as the South.¹²⁷ In contrast, the North Carolina court in *State v. Manuel* (1838)¹²⁸ held that free Black people born within the state were citizens of that state. In 1849, the Massachusetts Supreme Judicial Court did not deny that Black people were citizens, even though it created a two-tiered model of citizenship.¹²⁹ These opposing decisions reflect the fragmented, state-based citizenship regimes. State courts were consistent with one thing: Black people, regardless of whether they were enslaved or not, could not have access to substantive citizenship or political membership, such as the practical capacity to participate in and benefit from the polity, in addition to formal legal recognition.

The Supreme Court also struggled to make sense of citizenship in Antebellum America. The U.S. District Court in Connecticut, for example, held that West Africans who had been

¹²⁵ *Amy*, 11 Ky. (1 Litt.) at 326.

¹²⁶ *Id.*

¹²⁷ *Id.*

¹²⁸ *State v. Manuel*, 20 N.C. (3 & 4 Dev. & Bat.) 144 (1838).

¹²⁹ *Roberts v. City of Boston*, 59 Mass. (5 Cush.) 198 (1849) (affirming racial segregation in public schools on the basis that it was lawful and within the discretion of the local authorities, as long the facilities were equal.).

kidnapped by Spanish slavers and transported to the U.S. were not lawful slaves but freemen.¹³⁰ The Supreme Court affirmed that decision in *United States v. The Amistad* (1841).¹³¹ In doing so, the Court, intentionally or not, suggested that Black people could be people rather than property. Justice Story, writing the majority opinion, went further, proclaiming that the Africans had a natural right to resist unlawful captivity and did so by taking “possession of the Amistad, and endeavour[ing] to regain their native country.”¹³² Indeed, the Supreme Court’s decision in Amistad illustrated a somewhat coherent reasoning within the U.S.’s inconsistent and contradictory citizenship regime. More jarring is the alacrity with which the Supreme Court reversed course, deviating sharply from the Amistad decision, in its 1857 Dred Scott decision.¹³³

Antebellum slavery is often mischaracterized as a racial caste system. Such a system presumes social membership, a recognizable civic identity, and hierarchical inclusion within the political apparatus. However, that analytical framework obscures the deeper historical, legal, and socio-political structure through which slavery functioned as a form of governance. Black people living in Antebellum America did not engage meaningfully in democratic institutions. Enslaved Black people were treated as chattel, while all Black people were uniformly excluded from substantive citizenship and were frequently governed outside the constitutional order by micro-sovereign political elites. Slavery even organized the lives of free Black people, whose freedom was tentative and, if any, lacked uniform equal rights and access to democratic institutions.

IV. Dred Scott v. Sandford

¹³⁰ *United States v. The Amistad* (1841), 40 U.S. (15 Pet.) 518 (1841).

¹³¹ *Id.*

¹³² *Id.*

¹³³ See *infra* *Dred Scott v. Sandford*, 60 U.S. (19 How.) 393 (1857).

The Court's decision in *Dred Scott v. Sandford* (1857)¹³⁴ is arguably one of the most instructive cases in American jurisprudence on citizenship and reflects the nation's predilection for racialized political structures. Dred Scott, an enslaved man, was taken by his owner from Missouri to the free state of Illinois and later to the free Upper Louisiana territory before returning to Missouri.¹³⁵ Upon their return, Scott's owner sold him to Sandford, a citizen of New York.¹³⁶ Scott unsuccessfully sued Sandford in Missouri state court for his freedom.¹³⁷ Thereafter, Scott brought a suit for trespass against Sandford in federal court, claiming diversity jurisdiction.¹³⁸ Sandford, in response, filed a plea of abatement asserting that Scott was not a citizen and, therefore, unable to bring suit.¹³⁹ The Supreme Court, in a 7-to-2 decision, held that the descendants of Africans brought to the Americas via the Transatlantic Slave Trade were not citizens within the context of the U.S. Constitution.¹⁴⁰

The Supreme Court in *Dred Scott* purported to reconcile the tensions between the Constitution's text and the prevailing political and social beliefs that shaped its interpretation. Yet the Court struggled significantly with this task. The length and structure of the opinion suggests that the Court sought to justify its predetermined conclusion rather than engage in principled constitutional reasoning. The opinion is approximately 240 pages long with six concurrences from each justice in the majority, and two separate dissents from Justices John McLean and Benjamin

¹³⁴ *Id.*

¹³⁵ *Id.* at 397–398.

¹³⁶ *Id.* at 398.

¹³⁷ *Id.* at 398–399

¹³⁸ *Id.*

¹³⁹ *Id.* at 400.

¹⁴⁰ *Id.* at 396.

R. Curtis.¹⁴¹ The sheer number of opinions suggests that there was deep disagreement among the justices about *why* Black people were excluded from the Constitutional meaning of citizenship. It cannot be ignored that five of the seven justices in the majority hailed from slave states, and Chief Justice Roger B. Taney, who wrote the majority opinion, was himself a slaveowner.¹⁴² Thus, many of the justices had either lived experiences or vested interests that supported upholding the institution of slavery and narrowing the constitutional definition of citizenship. When contrasted with the concurrences and dissents, the majority opinion reflects a nation wedded to the existing socio-political structure and economic benefits of slavery, despite its deep desire to legitimize its novel constitution.

The Supreme Court, in addition to deciding that some four million enslaved people in the U.S.¹⁴³ were not citizens, decisively outlined the power of Congress and the state legislatures. First, the Court positively defined citizenship.¹⁴⁴ In that, the Constitution extended citizenship to white “persons, who at the time of the adoption of the Constitution [were] recognized as citizens in the several States and [who] became also citizens of the new political body,” and their descendants.¹⁴⁵ Likewise, Congress, in its naturalization power, “confine[d] the right of becoming citizens ‘to *aliens being free white persons*.’”¹⁴⁶ Neither category applied to Blacks.¹⁴⁷

¹⁴¹ *Dred Scott*, 60 U.S. (19 How.) (1857).

¹⁴² Paul Finkelman, *Scott v. Sandford: The Court's Most Dreadful Case and How It Changed History*, 82 CHI.-KENT L. REV. 3, 30 (2007).

¹⁴³ U.S. Census Bureau, *Population of the United States in 1860* [10] (1864), <https://www2.census.gov/library/publications/decennial/1860/population/1860a-02.pdf>.

¹⁴⁴ *Dred Scott*, *supra* note 143, at 419–420.

¹⁴⁵ *Id.* at 406.

¹⁴⁶ *Id.* at 417.

¹⁴⁷ *Id.* at 482.

Second, the Constitution did not imbue states with the power to emancipate enslaved people from other states or to make Black people citizens under the laws of the United States.¹⁴⁸ Because of that, Black people could not claim the privileges and immunities of citizenship, such as meeting the standing requirement in federal court.¹⁴⁹ Third, the Court invalidated the Missouri Compromise, holding that Congress could not prohibit slavery in federal territories because doing so would violate slaveholders' Fifth Amendment due process rights by depriving them of their property.¹⁵⁰ Even on uneven constitutional reasoning, the Supreme Court took the opportunity to resolve any possible ambiguities stemming from its ruling. Perhaps the opinion's significance lies less in its holding, but in the set of underlying values expressed through selective authority, dubious historical narratives, and tendentious constitutional interpretation.

To begin its analysis, the Court looks to the historical relationship between the Crown and Africans. According to the Court, African descendants hail from an inferior race of people. Referred to as an "unfortunate race," and "beings of an inferior order," the Court asserts that Blacks are,

*unfit to associate with the white race, either in social or political relations...that they had no rights which the white man was bound to respect; and that the negro might justly and lawfully be reduced to slavery for his benefit.*¹⁵¹

As in most of its opinion, the Court presents this statement as fact. With no evidence, the Court assumes that Black people are an entirely inferior race. To the Court, Black people are incapable of engaging in either White social or political structures, so they could not possibly possess the rights found within these structures. This is not just the Court reiterating that Blacks

¹⁴⁸ *Id.*

¹⁴⁹ *Id.* at 481.

¹⁵⁰ *Id.* at 450.

¹⁵¹ *Id.* at 407.

are excluded, but that Black people operate within an entirely different system run by White people within the more dominant system. A paternalistic relationship, as the Court implied, is the only *just* relationship between Black and White people.

Through incomplete historical anecdotes, the Court continues equating the English enslavement of Africans with their inherent worth as property.¹⁵² Such reasoning is deeply flawed. The Court crafts the narrative so that the authority to determine worth resides with the English gaze, the very government and society the U.S. rebuked, and the countrymen they no longer claimed.¹⁵³ The Court, intentionally or not, associates the choice to enslave an individual with a determination of the worth inherent in the individual's race; instead of the simple principles of trade, such as supply and demand. The English purchase of slaves from African nations to support England's exploitation of the American colonial economy was functionally the movement of human capital, not, as the Court suggests, the movement of goods.¹⁵⁴ This may explain why the Court does not acknowledge that indentured servitude extended to Black and White people alike¹⁵⁵ and that, arguably, a form of involuntary servitude existed in Europe in the form of medieval serfdom, which predated the slave trade in the Americas.¹⁵⁶ Moreover, the Court ignores that the slave traders included Africans, too. The Court intentionally disregards the economic reality of the slave trade, positioning it as an indication of Black worth as property.

¹⁵² *Id.* at 407–408.

¹⁵³ *Id.*

¹⁵⁴ *Id.*

¹⁵⁵ *Id.* at 408.

¹⁵⁶ Marc Bloch, *Feudal Society II: Social Classes and Political Organization* 62 (L.A. Manyon trans., 2d ed. 1962).

If the historical context did not suffice, the Court then turns to the colonial laws as evidence of the public's opinion of the "degraded condition of this unhappy race," in the new nation.¹⁵⁷ Here, the Court cites the text of two colonial laws forbidding interracial marriage, one from a slave state and one from a free state.¹⁵⁸ The Court implies that the laws "furnish positive and indisputable proof" of Black inferiority, reflecting the legal consensus and public opinion. The Court's analysis of the laws is a red herring. Beyond the prohibition on interracial marriage, nothing in either of the quoted texts explains why such a union was outlawed. It is the Court in the preceding paragraphs that extrapolates without any evidence other than the mere existence of the laws to prove the Court's own point. Of the hundreds of laws that may have better supported the Court's opinion or even passages within the cited laws, the Court relies on laws that allowed for the intermingling of the two races, demonstrating some relationship other than property and paternity, and whose punishment lacks the same zeal later preached by the Court. Despite the underwhelming and inchoate analysis of these colonial laws, the Court posits it as a legitimate justification.

In many ways, the Supreme Court postulates that the Black race does not just operate outside of the White race's social and political structure, but that it operates within its own structure. The abovementioned colonial laws, in the Court's words, exemplify the "perpetual and impassable barrier [that] was intended to be erected between the white race and the one which they had reduced to slavery [the Black race]..., which they then looked up as so far below them in the scale of created beings"¹⁵⁹ This alone, the Court contends, evidences that the whole of the Black race was of the "deepest degradation."¹⁶⁰ But again, the Court cites nothing to substantiate

¹⁵⁷ *Dred Scott*, 60 U.S. (19 How.) at 409.

¹⁵⁸ *Id.* at 408–409.

¹⁵⁹ *Id.* at 409.

¹⁶⁰ *Id.*

it. What the argument does do is take the Court's earlier point that the Black race is inferior and quantifies that inferiority as almost unfathomably below the White race. The curious phrasing of "perpetual and impassable barrier" further dictates that the two races exist in two different structures, or planes.¹⁶¹ This imagery of the Black race as being structured within the confines of slavery exists outside of the significantly more worthy social and political structure of the White race.

Indeed, the Court misapplies and misconstrues the text of the Declaration of Independence and Constitution to further its narrative.¹⁶² In its explanation of the "all men are created equal" phrase found in the Declaration of Independence, the Court acknowledges the ordinary meaning as "seem[ing] to embrace the whole human family."¹⁶³ Yet the Court dismisses its own reading.¹⁶⁴ It reasons that the framers of the Declaration subscribed to the unspoken assumption that Black people are not people, and if they had, these "great men—high in literary acquirements,"¹⁶⁵ would have explicitly included Blacks. The underlying premise of the Court's argument is equally applicable in the negative: if Blacks were not included in the definition of "men," then the framers would have written it. The same framing is applied by the Court to the preamble of the Constitution. The preamble refers to "the *people* of the United States" and the "citizens of the several States."¹⁶⁶ The Court has no response other than that the framers of the Constitution would have explicitly included the Black race. Thus, the Court engages in strained linguistic and

¹⁶¹ *Id.*

¹⁶² *Id.*

¹⁶³ *Id.* at 410.

¹⁶⁴ *Id.*

¹⁶⁵ *Id.*

¹⁶⁶ *Id.* at 411 (Emphasis added).

interpretive gymnastics to fit the evidence into its narrative, frequently relying on the unspoken premise that the Constitution excludes Blacks rather than on authority that shows a more nuanced understanding of their status vis-à-vis the state.

The Court's only somewhat compelling point examines the textual placement and inclusion of the Fugitive Slave Clause.¹⁶⁷ This point drives the Court's next assertion—enslaved Black people are not people legally, but property, and the property rights are foundational to American democratic values. The crux of the arguments here is that this clause was included in the Constitution to demonstrate that slaves were property, and this property cannot be taken away.¹⁶⁸ The Court looks to the first clause of Article VI, which states that “All Debts contracted, and Engagements entered into, before the Adoption of this Constitution, shall be as valid against the United States under this Constitution, as under the Confederation,” to address these arguments.¹⁶⁹ The Court reasons that the framers of the Constitution included the clause because it was necessary in the new government.¹⁷⁰ Thus, the property right to own slaves is critical to the functioning of the nation and establishes a relationship, the only appropriate relationship, between the two structures of governance, the democratic republic and slavery. The Court ignores that the framers included the Fifth Amendment as a direct response to the English Crown infringing on the rights of the colonists, including prohibiting the state or the federal government from simply taking another's property without notice or proper compensation.¹⁷¹ The Court's analysis, as before,

¹⁶⁷ *Id.*

¹⁶⁸ *Id.* at 441.

¹⁶⁹ *Id.*

¹⁷⁰ *Id.*

¹⁷¹ *Id.* at 450.

offers weak support to the fact that the framer's concern with property extended specifically to the institution of slavery.

This landmark antebellum case, *Dred Scott v. Sandford*, did not create the dominant racialized order; it constitutionalized an already fractured conception of citizenship and personhood within the antebellum democratic republic and exposed that Black people operated under an entirely different form of governance. In the end, the Supreme Court failed to meaningfully resolve any tensions in the concept of U.S. citizenship; instead, it simply reflected a deeply racist ideology at the core of the political structure.

Rather than reflecting a coherent or universal concept of political membership, antebellum legal thought organized individuals through a complex system of status, hierarchy, and subordination. As summarized by Professor William Novak, and quoted by Scholar Jacob Hamburger, “antebellum America understood the relationship between individuals and public authority less as a single, uniform relationship between equal citizens and the national government, than as a diffuse ‘web of relations’ between groups holding various legally significant statuses, enforced primarily by state and local governments exercising their police powers.”¹⁷² As a result, legal membership in the American political context depended on an individual's position within a layered system of legal recognition. Foreign-born individuals were naturalized under federal law, while those born in the United States generally derived citizenship through common-law principles and state practice, subject to significant racial and political exceptions.¹⁷³

V. American Feudalism

¹⁷² Jacob Hamburger, The Consequences of Ending Birthright Citizenship, 103 WASH. U. L. REV. 209, 216 (2025).

¹⁷³ Michael D. Ramsey, Originalism and Birthright Citizenship, 109 GEO. L.J. 405, 416 (2020).

If, as stated above, the current framework for which the American experiment exists does not sufficiently encapsulate the relationship between democratic political structures and enslaved Black people, then a new, holistic framework for understanding these layered systems is warranted. This paper proposes reframing antebellum democratic governance as one including, but not defined by, a framework reminiscent of English feudal subjecthood. Previous sections established the English subjecthood traditions, theoretical foundations of citizenship, antebellum constitutional contradictions, and the legal structure of slavery. This final section synthesizes those frameworks into a unified theory of governance for Black people in Antebellum America, referred to here as American feudalism.

Undoubtedly, Black people existed outside the constitutional community envisioned by antebellum democratic citizenship. Prominent theorists on Black American citizenship, such as W.E.B. Du Bois, Oliver Cromwell Cox, Michelle Alexander, and Isabel Wilkerson,¹⁷⁴ conceptualize the existence of Black people in America within a caste framework. A caste system presumes membership within an established social hierarchy.¹⁷⁵ Membership is then actualized and confirmed through citizenship. However, this framework fails to capture Black people's citizenship in the antebellum period adequately. The Supreme Court's *Dred Scott v. Sandford* decision definitively excluded Black people from citizenship.¹⁷⁶ Without citizenship, enslaved Black people lacked political autonomy and sovereignty to be members of the socio-political structure. Furthermore, Black people lacked mutual recognition. As previously mentioned, under

¹⁷⁴ W.E.B. Du Bois, *The Souls of Black Folk* (A.C. McClurg & Co. 1903); Oliver C. Cox, *Caste, Class, and Race: A Study in Social Dynamics* (Monthly Rev. Press 1948); Michelle Alexander, *The New Jim Crow: Mass Incarceration in the Age of Colorblindness* (New Press 2010); Isabel Wilkerson, *Caste: The Origins of Our Discontents* (Random House 2020).

¹⁷⁵ Keidrick Roy, *Racial Feudalism*, 21 *Mod. Intell. Hist.* 304 (2024).

¹⁷⁶ *Dred Scott*, 60 U.S. (19 How.) at 588.

Hegel's theory of mutual recognition, political membership depends upon reciprocal acknowledgment of one's humanity by the political community itself.¹⁷⁷ In the same decision, the Supreme Court declared enslaved Black people to be property. Black people, therefore, occupied a liminal status within the personhood-to-property continuum, whereby a slave was considered property first. Because mutual recognition requires the recognition of an individual's humanity, such designation as property, enslaved Black people seem excluded from political membership by this measure. To an extent, slavery represented the constitutional triumph of property over personhood. The perception of Black people as inherently uncivilized, politically immature, and incapable of self-governance acted as another justification for Black exclusion from democratic institutions.¹⁷⁸ Of course, this presumption is untrue and reflects deeply racist ideals. It does, however, reflect a citizenship regime deeply rooted in white superiority.¹⁷⁹ Therefore, Black people experienced more than political discrimination; the boundaries of democratic personhood itself were defined through Black exclusion. Yet if Black people existed outside the democratic political structure, under what form of governance did they exist?

This article asserts that enslaved Black people existed within a parallel alternative governance framework, akin to feudalism, within the American constitutional order. Substantive democratic citizenship was largely reserved for white men, whereas Black people operated under a different form of governance. Slavery formed the basis of this governance for Black people. As a governing structure, it regulated labor, mobility, punishment, dependency, and social order through localized systems of coercive authority. Slavery thus allowed white slaveowners to

¹⁷⁷ Georg W.F. Hegel, *Phenomenology of Spirit* ¶¶ 178–96 (A.V. Miller trans., Oxford Univ. Press 1977) (1807).

¹⁷⁸ *Dred Scott*, 60 U.S. (19 How.) at 417.

¹⁷⁹ *Id.* at 419–420.

exercise quasi-sovereign power over enslaved Black people without reciprocal protection. This unilateral subjugation or racialized subjecthood entrenched white supremacy in the constitutional order. With little restraint, White slaveowners and other members of the plantocracy consolidated fragmented power and exercised arbitrary authority; so much so that American slavery functioned as differentiated governance within the same constitutional order. And so American slavery reproduced many aspects of feudal governance while eliminating reciprocity through racialized chattel slavery. To be clear, this type of feudal governance does not refer rigidly to medieval Europe. Instead, it is a framework for understanding systems of governance organized around fragmented sovereignty, hierarchical dependency, privatized coercion, localized authority, land-based authority, and subjecthood rather than citizenship. Thus, the term “American Feudalism” describes this parallel political order through which Black people in Antebellum America were governed outside of the American democratic regime.

American feudal governance is structured through a fragmented sovereign order in which political elites exercise localized, land-based authority and sustain hierarchical dependency through privatized coercion and racialized subjecthood. The Constitution accounts for the layered governance inherent in federal systems, delineating spheres of sovereignty¹⁸⁰ and asserting federal supremacy over the states.¹⁸¹ Rather than being monopolized by state or federal governments, much of sovereign authority was distributed among a layered set of local actors in pre-Civil War America. This set of actors used sovereign-like authority to maintain local status, customs, and forms of violence. Such authority primarily resided with the political elite, most visibly with the Southern planter class and indirectly the Northern financiers and industrialists whose economic

¹⁸⁰ U.S. Const. amend. X.

¹⁸¹ U.S. Const. art. VI, cl. 2.

interests were intertwined with slavery. These elites exercised localized sovereign-like authority with limited federal interference, functioning in many respects like feudal lords governing dependent subjects. Localized, land-based authority of the political elites was organized around landownership and plantation governance. Land control, distribution, and use formed the foundation of political authority and social organization in Antebellum America. American democracy was deeply tied to the acquisition, utilization, and protection of land. As in English feudal systems, where the fief structured both political authority and relations of dependency, land in Antebellum America functioned as the primary mechanism through which the political elite exercised power. Land ownership equated to political power; the more land an individual owned, the greater their political power. Because of this, the plantation became the central site through which slaveowners consolidated and exercised localized economic, social, and sovereign power over enslaved Black people. Plantations functioned most like sites of micro-sovereignty, a term coined by Caroline Humphrey,¹⁸² operating semi-autonomously and through fragmentation.

Because the planter class lacked institutional capacity to maintain direct control across the South, it outsourced its authority to an intermediary enforcement class. Composed of poor whites, overseers, patrolmen, small farmers, local militia, and laborers, intermediary enforcers upheld slavery despite lacking the power and authority of the elite class. The exercise of slavery provided social capital to an otherwise excluded group and economic stability through private employment as slavers, merchants, and skilled laborers. White identity functioned as a form of political compensation, providing a degree of racial authority despite economic inferiority. This decentralized system of governance blurred the distinction between public and private authority. As opposed to relying exclusively on centralized state enforcement, slavery depended upon semi-

¹⁸² Caroline Humphrey, Sovereignty, in *A Companion to the Anthropology of Politics* 418, 435 (David Nugent & Joan Vincent eds., 2004).

autonomous local actors to preserve social order and discipline Black people. Sovereignty, as a result, became fragmented and decentralized, with slaveowners exercising localized economic, social, and political authority through semi-autonomous plantation governance.

Coercive dependency is another defining feature of American feudalism. Plantation governance relied on the slaveowner-slave relationship, principally organizing slavery and structuring the political, social, and economic order of the Antebellum South. Slaveowners exercised a sovereign-like authority over nearly every aspect of the lives of enslaved Black people. This authority extended to labor regulation, surveillance, punishment, mobility, family structure, and quasi-judicial control with limited federal interference. The nature of American slavery deviates from the feudal dependency seen in Medieval England. Enslaved Black people were not bound to the land through reciprocal obligations, customary dependence, or consent. In fact, the defining feature of American slavery was the violent enforcement of subordination. Enslaved Black people complied because the cost of resistance was often too dangerous, including beatings, sale, family separation, or worst, death. This violence was frequently administered through the intermediary enforcers (e.g., overseers, patrolmen, and poor whites) whose authority was privatized yet socially and legally legitimized. A meaningful exit from slavery was nearly impossible. This produced a more extreme form of coerced dependency than traditional English feudalism. American slavery intensified traditional feudal dependency through racialization, hereditary status, and the total commodification of human beings, exacting a more absolute form of subjugation.

While a true feudal society did not exist, there was a dual political order: democratic citizenship for White people coexisted with a racialized system of subjecthood resembling feudalism for Black people. The Constitution did not merely tolerate slavery; it structurally

accommodated and protected slavery's localized sovereign-like authority by embedding it within the constitutional order itself. Through constitutional protections for property rights, decentralization of local authority, and the preservation of slavery as a legal institution, the constitutional framework enabled slaveowners to exercise substantial localized power over enslaved Black people while simultaneously excluding them from meaningful political membership. In this respect, America's constitutional democracy incorporated a parallel system of racialized governance grounded in coercive dependency, fragmented sovereignty, and hierarchical subordination. Thomas Jefferson's assertion "that the true foundation of republican government is the equal right of every citizen in his person and property and in their management,"¹⁸³ further reflects how republican citizenship at this time was tied to property ownership rather than universal political equality. Because Black people were excluded from substantive citizenship, they existed not as full participants within the democratic order, but as subjects governed through localized and racialized systems of domination protected by the Constitution itself.

American Feudalism reframes the discourse about the relationship between American democracy and slavery as dual forms of governance simultaneously and interdependently within the same constitutional order. On one hand, American democracy provides democratic citizenship, political participation, constitutional protection, and access to sovereignty to white men. The American Feudalism framework, on the other hand, reflects a form of governance in which there is hierarchical dependency, privatized coercion, fragmented sovereignty, land-based political power, and racialized subjugation. Under this framework, Black existence and political membership in the antebellum period is more than agricultural labor exploitation and racial caste.

¹⁸³ Letter from Thomas Jefferson to Samuel Kercheval (July 12, 1816), in *The Founders' Constitution* ch. 13, doc. 5.

It is far more layered and distinct. To summarize, American Feudalism provides a lens through which systems of domination beyond medieval Europe, most notably here, American chattel slavery, can be understood not as aberrations, but as structurally analogous forms of feudal organization.

VI. Conclusion

This paper presents a different approach to understanding racialized governance and citizenship regimes in pre-Civil War America. While this era is often associated with the American racial caste system, this analysis suggests that Black individuals were governed by a separate structure within the U.S. democratic republic of that time. This structure was, and largely remains, based on subordination, dependence, and exclusion from the sovereign community. American citizenship regimes organized white populations, while slavery functioned as a parallel system, shaping the lives of Black people. As a concept, American Feudalism describes the political, economic, and social relationships between Black people and White elites. Although not identical to modern feudalism, slavery was a distinct system characterized by subjecthood akin to English feudalism, including decentralized sovereignty, personal domination, hierarchical relationships, and the combined exercise of private and public powers. The key differences are the lack of reciprocity and the violent dependence inherent in feudal relationships. Still, the goal was the same: to establish governance that structured the economic, social, and political relationships within a territory. The American constitutional order achieved this. American Feudalism existed simultaneously with, rather than opposed to, the democratic republic that the American founders fought to maintain, and in some ways, it still does.